

TENTATIVE RULINGS

DEPT. CM7

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TENTATIVE RULING

Date: 06/17/2026

Case #	Case Name	Tentative
01384411	Biggs – Trust	TENTATIVE RULING Case: Biggs – Trust 01384411 Calendar No.: 2 Date: 06/17/26 MOTION TO BE RELIEVED AS COUNSEL (ROA 55) Attorney Stephen P. Shepard seeks to be relieved as counsel for Trustee Michele Biggs. An attorney's right to withdraw as counsel is conditioned upon compliance with California Rules of Court, Rule 3.1362 and, where applicable, Orange County Local Rule 601.21. Counsel has not complied with either. Counsel has not filed all three forms (i.e., MC-051, MC-052, and MC-053) required by California Rules of Court, Rule 3.1362. Specifically, Counsel has not filed the Order Granting Attorney's Motion to Be Relieved – Civil (MC-053). All three mandatory forms must be filed <u>and</u> served on the client <u>and</u> on all persons who have appeared in this action. There is no proof of service filed with this motion. Counsel has also not complied with Orange County Local Rule 601.21, which provides as follows: "If an attorney wishes to withdraw from a probate proceeding as attorney of record for the estate representative or any other fiduciary, in addition to the requirements under CCP 284 and CRC 3.1362, the attorney must have a citation issued and served on such motion or petition directing the representative to appear

		before the court to show cause why the motion or petition should not be granted or why the representative has not taken the steps to complete his or her duties.” The client is the trustee of the subject trust, and the court’s records do not reflect that a citation was issued to the client. Counsel must file a Citation – Probate (DE-122/GC-322). Once the citation is signed by the court, counsel must have it served on the client in the same manner as a summons. If the client appears at the hearing, the motion may be granted. Otherwise, the motion will be continued once for compliance with the foregoing.
		TENTATIVE RULING Case: Calendar No.: Date: 06/17/26
01059752	Zeigler - Trust	TENTATIVE RULING Case: Zeigler - Trust 01059752 Calendar No.: 6 Date: 06/17/2026 MOTION FOR RECONSIDERATION (ROA 551) Petitioner Linda Zeigler (“Petitioner”) filed a motion captioned as follows: “MOTION FOR RECONSIDERATION OF OSC RE CONTEMPT REQUEST TO RESTORE CALENDAR COURT ORDER OF 12.5.2022 HEARD ON 10.8.2025, C.C.P. §1008, AND REQUEST FOR STAY C.C.P. §404.5 FOR THE TRIAL SET FOR 12.2.2025. (ROA 551.) There is no proof of service of this motion and no opposition filed. Thus, the motion could be denied for lack of notice. The motion can further be denied on the merits.